

COMPREHENSIVE FACILITIES MAINTENANCE PROPOSAL

Master Service Agreement & Technical Specifications

Confidentiality Notice: The information contained within this proposal is proprietary and confidential. It is intended solely for the internal review and evaluation by the recipient. Distribution, replication, or disclosure of this document in whole or in part to external third parties without express written consent from Apex Commercial Facilities Group, LLC is strictly prohibited.

PREPARED FOR

Meridian Plaza Asset Management, LLC
Attn: Procurement & Facilities Operations Office

PREPARED BY

Apex Commercial Facilities Group, LLC
Enterprise Maintenance Division

455 Corporate Parkway, Suites 100-300
Metro City, NY 10012

892 Industrial Boulevard, Suite A
Commercial City, NJ 07001
Contracting License: #ACFG-992-881-CX

PROJECT / PROPERTY LOCATION

The Meridian Tower & Business Center

Consisting of 12 Stories, Attached Parking
Structure,
and Surrounding Commons (Approx. 450,000 gross
sq. ft.)

PROPOSAL DETAILS

Document ID: Prop-2026-9942-M

Date of Issuance: May 26, 2026

Validity Period: 60 Days from Issuance

1. Executive Summary

Apex Commercial Facilities Group, LLC (hereafter referred to as "Contractor") is pleased to submit this comprehensive facilities maintenance proposal to Meridian Plaza Asset Management, LLC (hereafter referred to as "Client"). We understand that managing a premier asset like The Meridian Tower requires an unyielding commitment to operational efficiency, structural integrity, regulatory compliance, and tenant satisfaction.

This proposal establishes a multi-tiered, preventative-focused maintenance framework designed specifically for the 450,000 square foot commercial ecosystem of The Meridian Tower. Our strategy transitions your facility from reactive maintenance to a predictive model, utilizing dedicated on-site personnel backed by our 24/7/365 emergency dispatch infrastructure. By combining routine mechanical, electrical, and plumbing (MEP) oversight with structural building envelope management, Apex ensures minimized downtime, optimized energy consumption, and extended lifecycle duration for crucial capital assets.

2. Scope of Services

The Contractor shall provide all labor, supervision, materials, diagnostic equipment, insurance, and tools necessary to execute the maintenance services detailed herein. Services are categorized into four distinct operating sectors: Preventative Mechanical, Electrical Distribution Oversight, Preventative Plumbing and Hydronic Management, and Architectural Layout & Structural Maintenance.

2.1. Mechanical & HVAC Systems Maintenance

Contractor will execute comprehensive, quarterly preventative maintenance protocols on all climate control and distribution systems. This includes, but is not limited to, the following baseline actions:

- **Chiller Plant & Cooling Towers:** Semi-annual inspection of centrifugal chillers, condensor tube cleaning, vibration analysis, refrigerant level logging, and cooling tower basin disinfection and fan alignment checks.
- **Air Handling Units (AHUs):** Monthly inspection and replacement of air filters (MERV 13 baseline), belt tension calibrations, drive alignment adjustments, condensate pan cleaning, and anti-microbial treatment application.
- **Boiler & Hydronic Heating:** Pre-season calibration of low-pressure steam and hot water boiler arrays, burner adjustments, safety valve verification, flue gas analysis, and circulation pump seal monitoring.
- **Building Automation System (BAS):** Weekly remote and local verification of DDC control sequences, sensor calibrations, alarm log clearance, and occupancy schedule fine-tuning.

2.2. Electrical Distribution Oversight & Safety

Routine operations to minimize the probability of catastrophic failures, electrical fires, and voltage variations include:

- **Thermal Imaging:** Annual infrared thermographic scanning of all main switchgear panels, distribution boards, and motor control centers (MCC) to isolate thermal anomalies.
- **Emergency Power Systems:** Monthly load-bank testing of the 750kW caterpillar backup generator array, transfer switch sequence evaluation, and fluid sample analysis.

- **Lighting Matrix Management:** Scheduled bi-weekly walkthroughs to replace failed elements, ballasts, and controls across interior common areas, egress routes, and multi-level parking structures.

2.3. Plumbing, Hydronic, and Drainage Operations

Continuous monitoring to limit internal water damage incidents and ensure domestic water purity metrics:

- **Backflow Prevention Assembly:** State-mandated annual recertification and testing of all cross-connection prevention devices with administrative filing.
- **Booster & Sump Pump Arrays:** Quarterly mechanical inspections of variable speed domestic water booster pumps, float control switch testing, and sewage ejector pit maintenance.
- **Mainline Drain Scoping:** Semi-annual hydro-jetting and digital camera tracking of primary horizontal waste lines to circumvent multi-floor blockages.

2.4. Architectural, Common Area, & Envelope Integrity

Preservation of aesthetic appeal and structural soundness through programmatic oversight:

- **Exterior Shell Evaluation:** Semi-annual visual inspection of exterior expansion joints, window seals, structural caulking, and localized facade masonry mapping.
- **Roof System Auditing:** Quarterly clearing of roof drains, overflow scuppers, parapet flashing reviews, and core moisture detection testing on the modified bitumen membrane.
- **Common Area Fit-and-Finish:** Continuous repair of drywall abrasions, acoustic ceiling tile swap-outs, common area door closer tunings, and high-traffic lockset assessments.

3. Staffing Matrix & Deployment Model

To ensure high operational precision, Contractor will station dedicated personnel natively on-site at The Meridian Tower during standard commercial business hours, supplemented by a tier-structured supervisory framework.

Personnel Role Assigned	Allocation / Deployment	Primary Area of Functional Focus	Response Window
Chief Stationary Engineer	Full-Time (40 Hours/ Week)	BAS Management, Chiller Operations, Regulatory Logging	Immediate (On-Site)
General Facilities Technician	Full-Time (40 Hours/ Week)	Lighting, Filter Rotations, Minor Plumbing, Fit-and-Finish	Immediate (On-Site)
Operations Project Manager	Shared Asset (As-Required)	Quality Assurance Audits, Client Relations, Subcontractor Sync	Within 4 Hours
Emergency Response Team	On-Call (24/7/365)	Disaster Mitigation, System Breaches, Power Failure Resolution	Under 2 Hours

4. Compensation and Financial Structure

The financial framework for these facilities maintenance services is structured as an all-inclusive fixed monthly baseline fee, covering all scheduled preventative items, standard labor matrices, and routine reporting parameters. Auxiliary services outside this core agreement are billed on a time-and-material schedule.

4.1. Recurring Operational Fee Schedule

Service Segment Description	Billing Cycle Frequency	Annualized Valuation	Monthly Installment Amount
Core Preventative Maintenance & Dedicated Staffing	Monthly Base Billing	\$324,000.00	\$27,000.00
Consumable Material Allowance (Filters, Belts, Fluids)	Monthly Flat Rate	\$36,000.00	\$3,000.00
Annual Comprehensive Switchgear & Chiller Overhaul	Amortized Component	\$24,000.00	\$2,000.00
AGGREGATE CONTRACT VALUE	FISCAL YEAR BASELINE	\$384,000.00	\$32,000.00

5. Master Service Agreement (Terms & Conditions)

5.1. Term of Engagement: This Agreement shall commence on July 1, 2026 (the "Effective Date") and shall remain in full force and effect for an initial duration of twenty-four (24) consecutive calendar months (the "Initial Term"). Upon expiration of the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods unless either party provides written notification of non-renewal to the counterparty no less than ninety (90) calendar days prior to the expiration of the then-current term.

5.2. Payment Protocol and Default: Contractor shall submit monthly invoices to the Client on or around the twenty-fifth (25th) day of each calendar month preceding the service month. Client shall remit full payment within thirty (30) days from the invoice issuance date (Net 30). Any balances remaining unpaid after the thirty-day grace period shall accrue interest compounding monthly at a rate of one and one-half percent (1.5%) per month, or the maximum rate permissible by governing law, whichever is lesser. Failure to remit payment within forty-five (45) days of issuance constitutes a material breach, authorizing Contractor to suspend all on-site operations without liability pending full financial cure.

5.3. Standard of Care and Warranty: Contractor covenants that all services rendered under this Agreement shall be executed with the highest professional care, skill, diligence, and expertise, conforming to or exceeding standard industry paradigms for top-tier commercial properties. Contractor provides a warranty on all craftsmanship and internal labor for a period of one hundred and eighty (180) days following project execution. Manufacturer warranties for specialized parts, electronics, and heavy equipment assemblies shall pass directly through to the Client, and Contractor assumes no independent liability for factory structural anomalies or inherent mechanical product defects.

5.4. Indemnity and Hold Harmless: Each party (the "Indemnity Provider") shall defend, protect, indemnify, and hold entirely harmless the other party, its corporate affiliates, officers, directors, stakeholders, and field employees (the "Indemnified Parties") from and against any and all third-party lawsuits, legal damages, financial losses, regulatory citations, administrative fines, or liabilities (including reasonable legal counsel fees) resulting directly from bodily injury, personal trauma, or tangible property

destruction to the extent caused by the negligent actions, willful misconduct, or operational omissions of the Indemnity Provider during the fulfillment of this Agreement.

5.5. Insurance Requirements and Proof: Contractor shall maintain throughout the duration of this contract, at its sole cost, the following insurance coverages: (a) Commercial General Liability insurance with an aggregate limit of no less than Five Million Dollars (\$5,000,000) and a per-occurrence limit of Two Million Dollars (\$2,000,000); (b) Automobile Liability covering all owned, leased, or non-owned fleet assets at One Million Dollars (\$1,000,000) combined single limit; (c) Workers' Compensation matching or exceeding statutory mandates; and (d) Professional Pollution/Environmental Liability coverage at One Million Dollars (\$1,000,000). Contractor shall cause Client to be named as an "Additional Insured" on General Liability policies and provide Certificates of Insurance prior to physical mobilization.

5.6. Limitation of Liability: Notwithstanding any conflicting provisions contained within this document or associated addenda, the maximum cumulative liability of Contractor for any claims, lawsuits, contractual breaches, or professional negligence actions arising out of or relating to this agreement shall be strictly capped at and limited to the total aggregate financial consideration paid by Client to Contractor under this specific agreement during the twelve (12) month period immediately preceding the date the actionable claim arose. Neither party shall, under any legal theory, be liable for consequential, incidental, indirect, punitive, or special damages, including but not limited to loss of commercial revenue, tenant lease cancellations, loss of market value, or data system interruptions.

5.7. Termination Protocol: (a) *For Cause:* Either party may terminate this Agreement immediately if the other party is adjudicated bankrupt, enters liquidation, or fails to cure a material breach of contract within thirty (30) days of receiving written notification outlining the specifics of the default. (b) *For Convenience:* After the Initial Term, either party may terminate this agreement without cause by executing a ninety (90) day advance written notice to the other party. In the event of convenience termination, Client remains explicitly liable to pay Contractor for all services rendered, material costs incurred, and non-cancelable third-party vendor orders executed up to the physical date of termination.

5.8. Exclusions from Base Scope: The monthly recurring rate accounts for routine maintenance only. The following items are explicitly excluded from the base scope of services and shall require separate authorization: (a) Remediation of hazardous environmental materials including asbestos, lead paint, and black toxic mold; (b) Major structural capital upgrades including total chiller replacement or building envelope refitting; (c) Damage repairs directly precipitated by force majeure occurrences, civil unrest, tenant vandalism, or vehicle collisions with building structures.

5.9. Force Majeure Defenses: Neither party shall be held legally responsible or in contractual breach for delays, failures, or interruptions in performance resulting from causes completely beyond their reasonable control. These events include, but are not limited to: severe acts of nature (earthquakes, hurricanes, catastrophic floods), declarations of war, terrorist blockades, national or regional labor strikes, widespread public health quarantine mandates, or structural failure of the municipal public utility power grid.

5.10. Dispute Resolution and Venue: All disputes, disagreements, or claims arising out of this contract shall first be subjected to mandatory, good-faith executive mediation between senior management leaders from both corporations. If amicable resolution is not achieved within forty-five (45) calendar days of filing a mediation demand, the dispute shall be resolved through binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules. The physical location for any arbitration proceedings shall be the county in which the commercial building resides, and the prevailing party shall be entitled to recover reasonable legal fees, expert witness costs, and arbitration processing fees.

5.11. Severability and Non-Waiver: If any precise paragraph, sentence, clause, or condition of this contract is deemed invalid, illegal, or unenforceable by an authorized court of law or arbitration panel, such invalidity shall not affect the balance of the agreement. The remaining clauses shall be interpreted as closely as possible to the original commercial intent of the parties. No waiver of any breach of covenant shall be construed as a continuous waiver of future breaches.

5.12. Entire Agreement: This document, along with appended financial tables and scheduling attachments, constitutes the entire and absolute agreement between Meridian Plaza Asset Management, LLC and Apex Commercial Facilities Group, LLC. It supersedes all prior oral conversations, rough email sketches, draft configurations, or preliminary proposals. Any modifications, alterations, or amendments to this contract must be executed in writing and explicitly signed by authorized executives from both corporate entities.

6. Acceptance & Execution Authorization

By signing below, the authorized corporate officers of both entities formally accept the terms, financial frameworks, operational scopes, and legal conditions outlined across all five pages of this Document ID: Prop-2026-9942-M. This agreement shall become legally binding upon the date of the final signature.

FOR: MERIDIAN PLAZA ASSET MANAGEMENT, LLC

FOR: APEX COMMERCIAL FACILITIES GROUP, LLC

Authorized Executive Signature

Authorized Representative Signature

Printed Name & Corporate Title

Printed Name & Corporate Title

Date of Execution

Date of Execution